

26STCV07440 26STCV07440

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV07440

HWA

JA CHUNG vs FRANK T. STANLEY

July

20, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT FRANK T. STANLEY DBA LAW OFFICE OF FRANK T. STANLEY'S DEMURRER TO PLAINTIFF'S COMPLAINT. MOTION THEREOF TO STRIKE.

RULING:

The Court sustains the
Demurrer, without leave to amend.

The Court grants the
Motion to Strike, without leave to amend.

Upon proper request from
Defendant, the Court may order this case dismissed with prejudice.

Defendant to give notice.

I.

BACKGROUND

On March 9, 2026, HWA JA

CHUNG (Plaintiff), a self-represented litigant, filed a Complaint against FRANK T. STANLEY dba LAW OFFICE OF FRANK T.

STANLEY (Defendant), listing Causes of Action for:

1.

PROFESSIONAL NEGLIGENCE/LEGAL MALPRACTICE;

2.

BREACH OF FIDUCIARY DUTY; |

3.

NEGLIGENT MISREPRESENTATION;

4.

FRAUD BY CONCEALMENT;

5.

UNJUST ENRICHMENT/RESTITUTION; and

6.

ACCOUNTING.

Plaintiff alleges that Defendant
distorted and inconsistently explained numerical information during legal representation

that impaired Plaintiffs ability to make informed medical and financial decisions and caused economic harm including paid healthcare services.

On April 17, 2026, Defendant filed the Demurrer to the Complaint, with the Motion to Strike allegations regarding emotional distress, and punitive, damages, attorneys' fees and irrelevant content, on several bases, including res judicata caused by the Demurrer sustained without leave to amend in Plaintiff's prior related case number 25STCV4847.

Plaintiff opposes, emphasizing that claim preclusion is inapposite because the prior dismissal was expressly without prejudice for nonattendance at a Case Management Conference. Further, Plaintiff contends that the claims are well pled, especially considering that Defendant impermissibly relies upon judicial notice of the content of Plaintiff's formerly filed Declaration and Responses to Requests for Admissions.

II.

LEGAL STANDARD

Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 879-880.)

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (*Ibid.*, § 437.)

“ '[W]here the nature of the plaintiff's claim is clear, and under substantive law no liability exists, a court should deny leave to amend because no amendment could change the result.' ” (*San Mateo Union High Sch. Dist. v. County of San Mateo* (2013) 213 Cal.App.4th 418, 441.) “ '[L]eave to amend should not be granted where ... [an] amendment would be futile.' ” (*Long v. Century Indemnity Co.* (2008) 163 Cal.App.4th 1460, 1468.) Generally, courts liberally grant motions for leave to amend, but have discretion to deny where, in all probability, the amendment

would be futile. (E.g., Foroudi v. Aerospace Corp. (2020) 57 Cal.App.5th 992, 1000–1001.)

“Evidence Code section

456 provides the trial court must indicate for the record if it denies a request for judicial notice.” (Aronoff

v. Martinez-Senftner (2006) 136 Cal.App.4th 910, 919 [“The record contains no indication the request for judicial notice was denied. We conclude the trial court took judicial notice of the requested matter, particularly in light of its decision.”].)

III.

ANALYSIS

Defendant brings the

Demurrer and Motion to Strike on grounds including as follows:

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Claim preclusion applies because Plaintiff’s

claims arise from Defendant’s representation of Plaintiff regarding injuries suffered during a motor vehicle accident on or about September 6, 2022.

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Plaintiff admitted that her claims are the

result of insufficient explanations and misunderstandings. (Request for Judicial Notice, Ex. 1 p. 2 In 7-8; Ex. 2, 2:12-19).

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Regarding legal malpractice and a duplicative

breach of fiduciary duties, while Plaintiff alleges errors, she does not allege facts connecting those to any economic injury. (See Complaint, ¶¶80–82.)

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Plaintiff is still able to collect all of

her medical expenses incurred from the underlying matter that has not been settled yet.

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The claims regarding misrepresentation

fail to be pled specifically, by Plaintiff’s alleging inconsistencies in

understanding of medical bills and settlement value. (Complaint, ¶ 92.)

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Unjust Enrichment is not a standalone cause of action and is inapposite to alleged receiving fees for legal services.

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Plaintiff fails to allege any relationship that necessitates an accounting.

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As for punitive damages, Plaintiff fails to properly plead facts of fraud, oppression or malice, as required by Civil Code section 3294. (See Complaint, ¶¶ 90-102.)

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Emotional distress damages are not generally recoverable for legal malpractice in client economic injury. (See e.g., *Merenda v. Superior Court*, (1992) 3 Cal.App.4th 1, 10-11.)

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Generally, Plaintiffs cannot recover attorney's fees paid to a negligent attorney in the underlying lawsuit as distinguished from damages. (See *Orrick Herrington & Sutcliffe LLP v. Sup. Ct.*, (2003) 107 Cal.App.4th 1052, 1058-1060.)

Plaintiff counterargues points including the following:

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The prior action was just a dismissal without prejudice for a nonappearance, not any determination based on case merits.

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This case involves “newly discovered, concrete material evidence” that was concealed. (Demurrer Opposition, 2:18).

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The various claims’ elements are alleged,

including who, what, when, and how, fraud, breach of the attorney-client relationship, and financial injuries.

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Unclean Hands bars Defendant's positions.

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The request for judicial notice is objectionable.

But for the February 9, 2026 Minute Order of Dismissal "Without Prejudice" in the related case, instead of "with prejudice" based on Demurrer sustaining without leave to amend, this case would have been barred by Claim Preclusion. An order of dismissal without prejudice has no preclusive effect under the doctrines of res judicata and collateral estoppel. (Egelston v. State Pers. Bd. (2025) 112 Cal.App.5th 1050, 1056.) And a dismissal for failure to prosecute is not on the merits, and hence is not res judicata, and a trial judge lacks authority to enter such a dismissal with prejudice. (Franklin Capital Corp. v. Wilson (2007) 148 Cal.App.4th 187, 215.)

Otherwise, Plaintiff

would not be permitted to divide one primary right into two lawsuits. (E.g., Hamilton v. Asbestos Corp., Ltd. (2000) 22 Cal.4th 1127, 1146.) And

Plaintiff's allegedly delayed discovery of preexisting occurrences would not serve to avoid the defense of res judicata. Res judicata or collateral estoppel would not apply if the facts materially changed or new facts occurred altering the parties legal rights or relations, but delayed discovery of evidence of unchanged facts is not any exception. (Evans v. Celotex Corp. (1987) 194 Cal.App.3d 741, 748 ["An exception to collateral estoppel cannot be grounded on the alleged discovery of more persuasive evidence. Otherwise, there would be no end to litigation."]; Angel Lynn Realty, Inc. v. George (2025) 114 Cal.App.5th 655, 665.) Res judicata would not apply to later discovered facts of causes of action unless with diligence they could have been discovered prior to filing the suit. (Allied Fire Protection v. Diede Construction, Inc. (2005) 127 Cal.App.4th 150, 157.)

Even so, the aspects of that unsuccessful Claim Preclusion defense assist in supporting a determination

that this case repeats essentially the same deficiencies that the Court analyzed in the Minutes entered on February 2, 2026, in the related case.

First, the briefing in this case is very similar to that filed in Plaintiff's prior case.

Second, the allegations are duplicative in all material respects. Specifically, in Plaintiff's prior First Amended Complaint (FAC), Plaintiff alleged being in an attorney-client relationship with Defendant, who misinformed Plaintiff about aspects of the underlying case, causing lost settlement opportunities, in regard to Plaintiff's serious personal injuries and damages caused by an automobile accident. In the instant Complaint, Plaintiff similarly alleges, for example, that: "Plaintiff recognized the material discrepancies and resulting injury described herein on or about May 1, 2025, when the materially lower settlement amount was communicated after prior communications in hundreds of thousands of dollars."

While the Complaint focuses upon alleged economic impacts (primarily medical expenses), instead of lost settlement opportunities as alleged before, such damages allegations, about discovering them in 2025, could have been included for litigation in the prior case still pending in 2026. Additionally, both cases relate to the same Defendant's legal representation about the same rear-end automobile collision in Ventura County. (E.g., Complaint, ¶¶ 7-9.) And like the prior action, this action suffers from speculation as to whether a future settlement amount will be lower because of counsel, since Plaintiff expressly has tied expense damages to a settlement. For instance, Plaintiff alleges: "To the extent any portion of such medical obligations is not satisfied from recovery or otherwise remains Plaintiff's responsibility, Plaintiffs financial exposure and personal liability are increased and constitute additional present economic injury." (Complaint, ¶ 64.)

Although Plaintiff recently reports that the Ventura County action "has concluded" (Demurrer Opposition, 8:26), such information comes from outside of the Complaint and cannot be considered. Courts will not consider information filed in opposition to a demurrer, but only the pleading and judicially noticeable matters. (Knickerbocker v. City of Stockton (1988) 199 Cal.App.3d 235, 239.) Moreover, the Opposition does not reveal whether Plaintiff recovered, or what amount, in the underlying

case, to show that medical obligations cannot be satisfied.

Finally, Plaintiff again

has inadequately briefed many points raised in the Demurrer and Motion.

Instead, the Oppositions only briefly comment, without citing to any authorities. (See, e.g., Demurrer Opposition, 10:1-6.) “Contentions are waived when a party fails to support them with reasoned argument and citations to authority.” (Moulton Niguel

Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215.) (Mesecher v. County of San Diego (1992) 9

Cal.App.4th 1677, 1686.) Ordinarily, appellate

courts will not consider arguments, authority, and facts that were not

presented in the trial court, and those are deemed to be waived. (E.g., Bank of America, N.A. v. Roberts (2013) 217 Cal.App.4th 1386, 1398-1399; In re

Marriage of Falcone and Fyke (2008) 164 Cal.App.4th 814, 826; DiCola v. White Bros. Performance Products, Inc. (2008) 158 Cal.App.4th 666, 676.) A judge in a civil case is not

“obligated to seek out theories [a party] might have advanced, or to articulate ... that which ... [a party] has left unspoken.”

IV.

CONCLUSION

The Court sustains the

Demurrer, and grants the Motion, without leave to amend, for reasons set forth above.